

RALLYING CALL PM Modi and Delhi CM Rekha Gupta at the Nari Shakti Vandan Sammelan in New Delhi, Apr. 13

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the built-in requirement that one-third each be earmarked in the 84 seats reserved for Scheduled Castes and the 47 seats reserved for Scheduled Tribes for women from the respective categories. They pointed to the several advantages this offers. One, it allows women's reservation to take effect immediately instead of waiting for the Census-delimitation cycle to grind its way forward. Two, it prevents the gender justice agenda from being hijacked by the North-South, caste and federal battles currently surrounding delimitation.

The core arithmetic is not difficult to understand. The problem, say experts, lies in the constitutional design. The current women's reservation law does not provide for immediate implementation inside the current Lok Sabha map. It explicitly links the quota to a future delimitation exercise following the next relevant Census. That means if Parliament now wants to reserve 181 seats for women within the existing House, it will almost certainly require another constitutional amendment. Experts point out that the notion that one-third of the existing 543 cannot be set aside without a fresh Census or delimitation is a policy preference, not a constitutional necessity. "The reservation for women does not need to be tied to delimitation at all. The amendment to enable it within 543 seats is legally available and has always been so," says Sanjeer Alam of the Centre for the Study of Developing Societies (CSDS).

The Congress pointed out that the 73rd and 74th Amendments of 1992-93, passed when it ruled the Centre, installed one-third reservation for women in panchayats and municipalities without any fresh delimitation by states. Over a dozen states have since raised that figure to 50 per cent, producing over a million elected women representatives at the local level. Earlier bills in Parliament seeking 33 per cent reservation for women had no delimitation clause either. Gaurav Gogoi put the Congress stance bluntly in the lower House: "If you had listened to us in 2023, women's reservation would have been implemented in 2024. We are urging not to link women's reservation with delimitation. If you do that, we will support it."

> **"BASE DELIMITATION ONLY ON 18-PLUS POPULATION. SOUTHERN STATES THAT HAVE FINISHED DEMOGRAPHIC TRANSITION HAVE A HIGHER SHARE OF ADULTS. THE IMBALANCE IS REDUCED"**
>
> **PROF. SANJEER ALAM**
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The government's counter-argument ran thus; if you apply one-third quota to the current 543, whose seats do you reserve? By what criterion is a sitting MP displaced? Also, as a BJP leader points out, political parties would find it hard to sell the idea as male MPs will have to vacate their seats to make way for their women counterparts.

Then, there is the question of rotation. With 181 seats reserved, constituencies would need to rotate every election cycle. As a senior BJP leader explained, "You will effectively reset one-third of the political map every five years. That has consequences for governance and accountability." Amit Shah, in his reply to the parliamentary debate, offered another counter-argument: expanding the House